fell dramatically and he lost 14 lbs (6.4 kg) from his pre-strike weight of 133 lbs (60 kg).

In the trial that followed, the accused were able to roundly denounce British authority. The proceedings were daily reported in the Lahore-based paper *The Tribune*, whose editor was sympathetic to their cause. Congressmen too rallied to support them. The defiance and bravery of the accused were carefully showcased in the newspapers. Though debilitated by hunger, they still ran rings around the magistrate, undermining his authority and exposing the proceedings to ridicule.

The trial began as a normal one. It was before a regular magistrate and was presided over by Rai Sahib Pandit Sri Kishen. He started hearing the case on 10 July 1929. The trial carried with it a right of appeal for the accused against conviction. The appeal would go before a regular high court judge in Lahore. The trial even ran for ten months, during which time the hunger strike was called off on 5 October 1929. Over 200 witnesses were examined. But then it ended abruptly. The Governor-General Lord Irwin decided that these normal proceedings should be transferred to a ‘special tribunal’ (which was to become a blue-print for modern-day terrorist trials before special courts). In this way, the magistrate’s trial was dramatically halted. This is despite the fact that it had been running for close to a year. How did Lord Irwin manage this stupendous feat?

He managed to do so because the governor-general signed off the Lahore Ordinance III of 1930 on 1 May 1930 from his Simla residence. Yet, under Section 72 of the Government of India Act, this could only be done if there was an ‘Emergency’, and the ordinance had to be for the ‘peace and good governance’ of India or any part of it. None of these conditions existed when the regular trial before a magistrate was so precipitously abandoned. The ordinance was not approved by the Central Assembly or the British Parliament. There was to be a three-judge special tribunal. It was not to sit in the regular courtrooms but at Poonch House. It was also not allowed to run the trial for another ten months to complete the remaining witnesses. Instead, it was mandated to complete the hearing within a fixed period of six months. This is because the Section 72 power of the Government of